

25NNCV07877 25NNCV07877

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C08%2F21%2F2026

Source SHA-256: c8c29d08e1520a62c5086ae08bfb0da8ce876136b6c1246c2053d3d5881a8688

Case Number: 25NNCV07877 Hearing Date: August 21, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Further

Responses to Request for Production; Request for Sanctions

Hearing Date: 8/21/26

CASE NO.: 25NNCV07877

CASE NAME: Bello v.

Green Dragon Caregivers, Inc., et al.

Moving Party: Plaintiff Julio Bello

Responding Party: Defendants

Manuel Semerdjian and Green Dragon Caregivers, Inc.

Notice: Sufficient

Ruling: DENY in part, GRANT in
part.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY

BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a dog bite action. Plaintiff Julio Bello (Plaintiff) alleges that three dogs owned by defendant Manuel Semerdjian (Semerdjian) bit him without provocation while he was making a delivery to the business location of Green Dragon Caregivers, Inc. (Green Dragon). Plaintiff alleges that Semerdjian was employed by Green Dragon and allowed him to keep his dogs on the premises during the workday. On November 5, 2025, Plaintiff filed a Complaint against Semerdjian and Green Dragon (collectively, Defendants) alleging strict liability under the dog bite statute, negligence, and conscious disregard of the rights and safety of Plaintiff.

On April 6, 2026, Plaintiff filed the instant motion to compel further response to Requests for Production (RPDs) (Res ID: 1264) served on Semerdjian.

On the same day Plaintiff filed separate motions to compel further response to Form Interrogatories (Res ID: 7931) served on Semerdjian and RPDs (Res ID: 5402) and Form Interrogatories (Res ID: 4728) served on Defendant Green Dragon.

On July 24, 2026, Semerdjian served a supplemental response to the RPDs at issue. On July 27, 2026, both Defendants filed a consolidated opposition to all motions.

On July 31, 2026, Plaintiff filed a Second Separate Statements in response to Semerdjian's supplemental response. On August 3, 2026, Plaintiff filed a consolidated reply.

This ruling addresses the Motion to Compel Further Response to RPDs served on Semerdjian. (Res ID: 1264)

LEGAL

STANDARD

"Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing," the trial court lacks jurisdiction to order further responses to interrogatories and/or requests for production of documents. (Code Civ. Proc., §§ 2030.300 (c), 2031.310 (c); see *Vidal Sassoon v. Superior Court* (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

Compel Further

Production of Documents

"On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... (1) [a] statement of compliance with the demand is incomplete[;] ... (2) [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] (3) [a]n objection in the response is without merit or too general." (Code Civ. Proc., § 2031.310(a).)

"A motion under subdivision (a) shall: (1) set forth specific facts showing good cause justifying the discovery sought by the demand; (2) be accompanied by a meet and confer declaration" and (3) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., § 2031.310(b).)

If a court determines the scope of discovery imposes a burden, causes great expense or is intrusive, and such outweighs the likelihood that the discoverable information sought will garner admissible evidence, the court shall limit the scope of discovery. (Code Civ. Proc., § 2017.020.)

DISCUSSION

Timeliness

Here,

Plaintiff purports that verified responses to request for production and interrogatories

were provided by Semerdjian on February 24, 2026. (Mot., p. 4.) Semerdjian's counsel confirms that verified responses were served on February 24, 2026. (Saboorian Decl., ¶ 3.) The instant motions were filed on April 6, 2026, 41 days from issuance of responses. Thus, the motion is timely and conforms with the 45-day statutory deadline.

Separate Statement

California Rules of Court, rule 3.1345 requires a separate statement for motions to compel further responses. Plaintiff filed separate statements in compliance with rule 3.1345(a) for each of the instant motions. Accordingly, this requirement is satisfied

Meet and Confer

A motion to compel further responses must be accompanied by a meet and confer declaration "showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here, Plaintiff's counsel declares that they have spoken with defense counsel and requested further responses, but defense counsel has not provided such responses even though they agreed to provide information. (Fry Decl., ¶ 4.) Notably, these efforts lack any attempts in person, by telephone, or by video conference to meet and confer. Therefore, the Court finds counsel's meet and confer efforts insufficient and noncompliant with Code of Civil Procedure section 2016.040.

However, the Court will address the motions on its merits.

Compel Further Production of Documents

Plaintiff moves the Court to compel Semerdjian to produce further responses to RPD items #1-3,

5-13, 15, 19, 20, 28, 33, 35, 37-39, 41, 43-45, 48-49. (Mot., p. 2.) The Court notes that objections are waived absent relief by the Court because Semerdjian provided responses to the RPDs after the deadline. (Fry Decl., ¶¶ 2-3.) In their Second Separate statement, filed July 31, 2026, regarding RPDs served on Semerdjian, Plaintiff reduces further responses sought to items #5, 8, 9, 12, 13, 19, 20, 28, 41, 43, 44, 45, and 49.

Plaintiff argues

that the requested documents in Items 5, 8-9, 12-13, 41, and 44-45 specifically relate to the attack. (Mot., p. 6.) Plaintiff argues that Semerdjian claimed to be searching for the documents and would provide any nonprivileged documents but has not produced them. (Ibid.) Items 5 and 12 are documents describing the incident, photos, film, videotapes and other depictions of the incident, and reports concerning the incident. (Ibid.) Items 8 and 9 relate to witness statements and witness identification. (Ibid.) Item 13 relates to an inspection made of the scene of the incident. (Ibid.) Item 41 requested any document showing someone other than Semerdjian caused Plaintiff's injuries, and Items 44-45 requested any documents regarding this lawsuit or Plaintiff's injuries. (Ibid.) Semerdjian stated they were not in possession of any nonprivileged documents relating to Item 12-13. (Ibid.)

Plaintiff argues

that Items 19-20, and 28 relate to the dogs involved in the attack. (Mot., pp. 6-7.) Items 19-20, and 28 requested documents relating to ownership of the dogs and vaccination and veterinary records. (Mot., p. 7.) Plaintiff argues that Semerdjian agreed to provide any nonprivileged documents but has not produced them. (Ibid.)

Plaintiff

argues that Item 43 requested documents identified in Semerdjian's responses to form interrogatories. (Mot., p. 7.) Plaintiff argues that although Semerdjian contends that they did not agree to produce the documents, the documents have nonetheless been identified and must be produced. (Ibid.)

Item

49 requests all documents that refer to any employee of Green Dragon who was working at the time of the incident. (Mot., Exh. 2, ¶ 49.) Plaintiff argues that Semerdjian must produce these documents as the CEO of Green Dragon since he should ordinarily maintain them for payroll purposes. (Second SS, p. 20.)

In

opposition, Semerdjian argues that Verified Supplemental Responses were subsequently served on July 27, 2026, containing all information which could be obtained. (Opp., p. 2.) The Court notes that proof of service attached to supplemental responses reflects service date of July 24, 2026. (Saboorian Decl., ¶ 4.)

In

reply, Plaintiff argues only that Semerdjian has not provided sufficient information to identify witnesses or employees working at the time of the incident. (Reply, p. 3.) Plaintiff reiterates that any objections were waived due to the late response to the RPDs. (Ibid.)

The Court finds

that Plaintiff does not demonstrate good cause for compelling further response to RPDs #9, 19-20, 28 and 43. Semerdjian has agreed to provide the documents sought in his supplemental responses to #9, 19-20, and 28, and to the extent the information was not in Semerdjian's possession, Semerdjian has provided contact information for parties which may have the documents. (Saboorian Decl., Exh. D, ¶¶ 9, 19-20, 28.) Further, Semerdjian cannot be compelled to produce hypothetical documents for prior incidents which they are not aware of. (Id. at ¶ 43.)

The Court finds

Items 5, 13, and 44 to be overbroad and implicate the attorney-client privilege and work product doctrine. The requests are not sufficiently limited in scope to exclude those items. (Fry Decl., Exh. 1, ¶¶ 5, 13, 44.) In requesting any and all communications of Semerdjian, all diagrams reproductions or models, all documents that refer to evidence, and all documents that refer to the incident, Plaintiff implicates protected communications and work product of the litigation.

Moreover, The

Court finds items 5, 8, 12, 41, and 45 to be vague and overbroad and not sufficiently limiting in scope. (Fry Decl., Exh. 1, ¶¶ 8, 12, 41, 45.) In items 5, 8, 12, 41, and 45 Plaintiff requests that Semerdjian provide any and all documents of any person referring to the incident, including any hypothetical documents that may refer to another party, other than Semerdjian, causing or contributing to the incident. These requests are extremely overbroad and not specific in their inquiry.

The

Court finds requests in Item 49 appropriately narrowed to the incident, and does not find the requests overbroad, vague, or ambiguous. The court acknowledges that Semerdjian purports not to be in possession of any documents that refer to or identify any employees working at the time of the incident. (Saboorian Decl., Exh. D, ¶¶ 49.) However, records of employees on site are not impossible to obtain and ordinarily maintained in the course of business. The Court finds that Semerdjian must provide further response.

Accordingly, the motion to compel further is

DENIED as to Items 5, 8-9, 12-13, 19-20, 28, 41, and 43-45. Motion to compel further response is GRANTED as to Item 49.

Sanctions

The Court shall

impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a

sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Plaintiff request

imposition of sanctions in the amount of \$2,110 against Plaintiff. (Mot., p. 9.) Defendant's requests \$1,110 in attorney's fees reflecting 3 hours preparing the instant motion, at a rate of \$350 per hour, plus a \$60 filing fee and an additional \$1,000 pursuant to Code of Civil Procedure section 2023.050(a). (Fry Decl., ¶ 12.)

The Court acknowledges that Plaintiff has

filed four related discovery motions to compel further responses from

Defendants, and only three have been granted in part. Here, the Court will reduce the sanctions to \$235 per motion for a total of \$705 consisting of \$525 in attorney's fees (1.5 hours preparing the three granted motions at a rate of \$350 per hour) plus \$180 (\$60 x 3) in filing fees for the motions granted.

CONCLUSION

AND ORDER

Plaintiff Julio Bello's Motion to Compel

Further Response to RPDs is DENIED as to Items 5, 8-9, 12-13, 19-20, 28, 41, and 43-45.

Plaintiff's Motion to Compel Further

Response to RPDs is GRANTED as to Item 49.

Plaintiff's request for sanctions is

GRANTED in the amount of \$235 to be paid by Defendant Semerdjian within

15 days from this ruling to Plaintiff.

MOVING PARTY shall provide notice and

provide a proposed order consistent with this ruling within 15 days from this date.

Motion to Compel Further

Responses to Form Interrogatories; Request for Sanctions

Hearing Date: 8/21/26

CASE NO.: 25NNCV07877

CASE NAME: Bello v.

Green Dragon Caregivers, Inc., et al.

Moving Party: Plaintiff Julio Bello

Responding Party: Defendants

Manuel Semerdjian and Green Dragon Caregivers, Inc.

Notice: Sufficient

Ruling: GRANT in part, DENY in part.

BACKGROUND

This is a dog bite action. Plaintiff Julio Bello (Plaintiff) alleges that three dogs owned by defendant Manuel Semerdjian (Semerdjian) bit him without provocation while he was making a delivery to the business location of Green Dragon Caregivers, Inc. (Green Dragon). Plaintiff alleges that Semerdjian was employed by Green Dragon and allowed him to keep his dogs on the premises during the workday. On November 5, 2025, Plaintiff filed a Complaint against Semerdjian and Green Dragon (collectively, Defendants) alleging strict liability under the dog bite statute, negligence, and conscious disregard of the rights and safety of Plaintiff.

On April 6, 2026, Plaintiff filed the instant motion to compel further response to Form Interrogatories (Res ID: 7931) served on Semerdjian.

On the same day Plaintiff filed separate motions to compel further response to Requests for Production (RPDs) (Res ID: 1264) served on Semerdjian and RPDs (Res ID: 5402) and Form Interrogatories (Res ID: 4728) served on Defendant Green Dragon.

On July 24, 2026, Semerdjian served a supplemental response to the Form Interrogatories at issue. On July 27, 2026, both Defendants filed a consolidated opposition to all motions.

On July 31, 2026, Plaintiff filed Second Separate Statement in response to Semerdjian's supplemental response. On August 3, 2026, Plaintiff filed a consolidated reply.

This ruling addresses the Motion to Compel Further Response to Form Interrogatories served on Semerdjian. (Res ID: 7931)

LEGAL STANDARD

“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing,” the trial court lacks jurisdiction to order further responses to interrogatories and/or requests for production of documents. (Code Civ. Proc., §§ 2030.300 (c), 2031.310 (c); see Vidal Sassoon v. Superior Court (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

Compel Further Responses to Interrogatories

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that... (1) [a]n answer to a particular interrogatory is evasive or incomplete; (2) [a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or...(3) [a]n objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300(a).)

“A motion under subdivision (a) shall: (1) be accompanied by a meet and confer declaration” and (2) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., § 2030.300(b).)

If a party fails to timely respond, objections are waived unless the court relieves the waiver upon a showing of mistake, inadvertence, or excusable neglect and a subsequently served compliant response. (Code Civ. Proc., § 2030.290.)

DISCUSSION

Timeliness

Here,
Plaintiff purports that verified responses to interrogatories were provided by Semerdjian on February 24, 2026. (Mot. to Compel Further Response (MTCF) to Form

Interrogatories, p. 3.) Semerdjian's counsel confirms that verified responses were served on February 24, 2026. (Saboorian Decl., ¶ 3.) The instant motion was filed on April 6, 2026, 41 days from issuance of responses. Thus, the motion is timely and conforms with the 45-day statutory deadline.

Separate Statement

California Rules

of Court, rule 3.1345 requires a separate statement for motions to compel further responses. Plaintiff filed a separate statement in compliance with rule 3.1345(a) for the instant motion. Accordingly, this requirement is satisfied

Meet and Confer

A

motion to compel further responses must be accompanied by a "meet and confer" declaration "showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here,

Plaintiff's counsel declares that they have spoken with defense counsel and requested further responses, but defense counsel has not provided such responses even though they agreed to provide information. (Fry Decl., ¶ 4.) Notably, these efforts lack any attempts in person, by telephone, or by video conference to meet and confer. Therefore, the Court finds counsel's meet and confer efforts insufficient and noncompliant with Code of Civil Procedure section 2016.040.

However, the

Court will address the motions on its merits.

Compel Further Response to Interrogatories

Plaintiff moves

the Court to compel Semerdjian to produce further responses to Form Interrogatories Items #2.2, 2.3, 2.5-2.8, 2.13, 4.1, 4.2, 12.1, 14.1, 15.1, and 17.1. (Mot., p. 2.) The Court notes that because Semerdjian provided responses

to the RPDs after the deadline, objections are waived absent relief by the Court. (Fry Decl., ¶¶ 2-3.) In their Second Separate statement, filed July 31, 2026, regarding Form Interrogatories served on Semerdjian, Plaintiff reduces further responses sought to Items #2.2, 2.3, 2.5-2.8, 2.13, 12.1, and 15.1.

Plaintiff argues

that Items #2.2, 2.3, 2.5-2.8, and 2.13 ask questions regarding Semerdjian such as date and place of birth, driver's license information, schooling and employment history, where he has lived, if he has any felony convictions, and whether he or any person involved in the incident used alcohol or other drugs. (Mot., pp. 4-5.) Plaintiff argues this information is known to Semerdjian and any objections are invalid due to late response. (Mot., p. 5.)

Plaintiff argues that Item #12.1, and

15.1 request information on witnesses, contentions of whether a violation of statute caused the incident, and documents supporting affirmative defenses and denials. (Mot., pp. 5-6.) Regarding Item #12.1, Plaintiff argues that counsel for defendant Green Dragon suggested that an employee claimed to be a witness and it is unclear whether that employee is Semerdjian. (Ibid.) Regarding Item #15.1, Plaintiff argues that Semerdjian was asked to identify each denial of a material allegation and each special or affirmative defense but only addressed the affirmative defenses, making his response incomplete. (Mot., p. 6.)

In opposition, Semerdjian argues that the

only remaining interrogatories at issue are #2.2, 2.3, 2.5-2.8. (Opp., p. 3.) Semerdjian argues that this dispute concerns a dog bite and his general residential, educational, and personal background is not at issue. Semerdjian argues that his identity is known, and unrestricted disclosure of his personal information is unnecessarily intrusive and disproportionate to the needs of the action. (Opp., pp. 3-4.) Alternatively, Semerdjian argues that the information sought should be limited in scope and permit redaction of personal identifiers. (Opp., p. 4.)

In reply, Plaintiff argues that Semerdjian

should be ordered to answer interrogatories #2.2, 2.3, 2.5-2.8 because they have been approved by the judicial system and seek basic information. (Reply, p. 3.) Plaintiff argues that he was served with the same set of questions and answered without objection, and Semerdjian should be ordered to do the same. (Ibid.) Further, Plaintiff argues that witnesses have not been adequately identified. (Ibid.)

The Court finds

that information sought in #2.2, 2.3, 2.5-2.8 is not overbroad, vague, or ambiguous. The court acknowledges Semerdjian's concerns regarding personal information, however, the information sought is relevant. Moreover, any objections have been waived due to late response. (Fry Decl., ¶¶ 2-3.) The Court finds that Semerdjian must provide further response.

Further, the

Court finds that Plaintiff does not demonstrate good cause for compelling further response to Form Interrogatories #12.1 and 15.1. because Semerdjian has provided a supplemental response with substantive answers. (Saboorian Decl., Exh. B, ¶ 12.1, 15.1.) While Plaintiff maintains that there was another employee who witnessed the attack, Plaintiff does not show where Defendants claimed there were three witnesses to the event. (Reply, p. 3.) In their second separate statement, Plaintiff makes similar unsupported argument. (Second SS, p. 3.)

Accordingly, the motion to compel further response to Form Interrogatories as to Items #2.2, 2.3, 2.5-2.8 is GRANTED. Motion to compel further response to Form Interrogatories as to Items #12.1 and 15.1 is DENIED.

Sanctions

The Court shall

impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

"A request for a

sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the

amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Plaintiff

request imposition of sanctions in the amount of \$1,110 against Plaintiff.

(Mot., p. 9.) Defendant’s requests \$1,110 in attorney’s fees reflecting 3 hours preparing the instant motion, at a rate of \$350 per hour, plus a \$60 filing fee. (Fry Decl., ¶ 12.)

The Court

acknowledges that Plaintiff has filed four related discovery motions to compel further responses from Defendants, and only three have been granted in part. Here, the Court will reduce the sanctions to \$235 per motion for a total of \$705 consisting of \$525 in attorney’s fees (1.5 hours preparing the three granted motions at a rate of \$350 per hour) plus \$180 (\$60 x 3) in filing fees for the motions granted.

CONCLUSION

AND ORDER

Plaintiff Julio Bello’s Motion to Compel

Further Response to Form Interrogatories is GRANTED as to Items #2.2, 2.3, 2.5-2.8.

Plaintiff’s

Motion to Compel Further Response to Form Interrogatories is DENIED as to Items #12.1 and 15.1.

Plaintiff’s request for sanctions is

GRANTED in the amount of \$235 to be paid by Defendant Semerdjian within 15 days from this ruling.

MOVING PARTY shall provide notice and provide a proposed order consistent with this ruling within 15 days from this date.

Motion to Compel Further

Responses to Request for Production; Request for Sanctions

Hearing Date: 8/21/26

CASE NO.: 25NNCV07877

CASE NAME: Bello v.

Green Dragon Caregivers, Inc., et al.

Moving Party: Plaintiff Julio Bello

Responding Party: Defendants

Manuel Semerdjian and Green Dragon Caregivers, Inc.

Notice: Sufficient

Ruling: DENY in part, GRANT in part.

BACKGROUND

This is a dog bite action. Plaintiff Julio Bello (Plaintiff) alleges that three dogs owned by defendant Manuel Semerdjian (Semerdjian) bit him without provocation while he was making a delivery to the business location of Green Dragon Caregivers, Inc. (Green Dragon). Plaintiff alleges that Semerdjian was employed by Green Dragon and allowed him to keep his dogs on the premises during the workday. On November 5, 2025, Plaintiff filed a Complaint against Semerdjian and Green Dragon (collectively, Defendants) alleging strict liability under the dog bite statute, negligence, and conscious disregard of the rights and safety of Plaintiff.

On April 6, 2026, Plaintiff filed the instant motion to compel further response to Requests for Production (RPDs) (Res ID: 5402) served on Green Dragon.

On the same day Plaintiff filed separate motions to compel further response to Form Interrogatories (Res ID: 4728) served on Green Dragon and RPDs (Res ID: 1264) and Form Interrogatories (Res ID: 7931) served on Defendant Semerdjian.

On July 24, 2026, Green Dragon served a supplemental response to the RPDs at issue. On July 27, 2026, both Defendants filed a consolidated opposition to all motions.

On July 31, 2026, Plaintiff filed a Second Separate Statements in response to Green Dragon's supplemental response. On August 3, 2026, Plaintiff filed a consolidated reply.

This ruling addresses the Motion to Compel Further Response to RPDs served on Green Dragon. (Res ID: 5402)

LEGAL STANDARD

"Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing," the trial court lacks jurisdiction to order further responses to interrogatories and/or requests for production of documents. (Code Civ. Proc., §§ 2030.300 (c), 2031.310 (c); see Vidal Sassoon v. Superior Court (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

Compel Further Production of Documents

"On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... (1) [a] statement of compliance with the demand is incomplete[;] ... (2) [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] (3) [a]n objection in the response is without merit or too general." (Code Civ. Proc., § 2031.310(a).)

"A motion under subdivision (a) shall: (1) set forth specific facts showing good cause justifying the discovery sought by the demand; (2) be accompanied by a meet and confer declaration" and (3) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., § 2031.310(b).)

If a court determines the scope of discovery imposes a burden, causes great expense or is intrusive, and such outweighs the likelihood that the

discoverable information, will garner admissible evidence, the court shall limit the scope of discovery. (Code Civ. Proc., § 2017.020.)

DISCUSSION

Timeliness

Here,

Plaintiff purports that verified responses to request for production and interrogatories were provided by Green Dragon on February 24, 2026. (Mot., p. 4.) Green Dragon's counsel confirms that verified responses were served on February 24, 2026. (Saboorian Decl., ¶ 3.) The instant motions were filed on April 6, 2026, 41 days from issuance of responses. Thus, the motion is timely and conforms with the 45-day statutory deadline.

Separate Statement

California Rules

of Court, rule 3.1345 requires a separate statement for motions to compel further responses. Plaintiff filed a separate statement in compliance with rule 3.1345(a) for the instant motion. Accordingly, this requirement is satisfied

Meet and Confer

A

motion to compel further responses must be accompanied by a meet and confer declaration "showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here,

Plaintiff's counsel declares that they have spoken with defense counsel and requested further responses, but defense counsel has not provided such responses even though they agreed to provide information. (Fry Decl., ¶ 4.) Notably, these efforts lack any attempts in person, by telephone, or by video conference to meet and confer. Therefore, the Court finds counsel's meet and confer efforts insufficient and noncompliant with Code of Civil Procedure section 2016.040.

However, the
Court will address the motions on its merits.

Compel Further Production of Documents

Plaintiff

moves the Court to compel Green Dragon to produce further responses to RPD Items #1-3, 5-13, 15, 19, 20, 28, 33, 35, 37-39, 41, 43-45, 48-49. (Mot., p. 2.) The Court notes that objections are waived absent relief by the Court because Green Dragon provided responses to the RPDs after the deadline. (Fry Decl., ¶¶ 2-3.) In their Second Separate statement, filed July 31, 2026, regarding RPDs served on Green Dragon, Plaintiff reduces further responses sought to Items #5, 8, 9, 12, 13, 19, 20, 28, 41, 43, 44, 45, and 49.

Plaintiff argues

that the requested documents in Items 5, 8-9, 12-13, 41, and 44-45 specifically relate to the attack. (Mot., p. 6.) Plaintiff argues that Green Dragon claimed to be searching for the documents and would provide any nonprivileged documents but has not produced them. (Ibid.) Items 5 and 12 are documents describing the incident, photos, film, videotapes and other depictions of the incident, and reports concerning the incident. (Ibid.) Items 8 and 9 relate to witness statements and witness identification. (Ibid.) Item 13 relates to an inspection made of the scene of the incident. (Ibid.) Item 41 requested any document showing someone other than Green Dragon caused Plaintiff's injuries, and Items 44-45 requested any documents regarding this lawsuit or Plaintiff's injuries. (Ibid.) Green Dragon stated they were not in possession of any nonprivileged documents relating to Item 12-13. (Ibid.)

Plaintiff argues

that Items 19-20, and 28 relate to the dogs involved in the attack. (Mot., pp. 6-7.) Items 19-20, and 28 requested documents relating to ownership of the dogs and vaccination and veterinary records. (Mot., p. 7.) Plaintiff argues that Green Dragon agreed to provide any nonprivileged documents but has not produced them. (Ibid.)

Plaintiff

argues that Item 43 requested documents identified in Green Dragon's responses to form interrogatories. (Mot., p. 7.) Plaintiff argues that although

Green Dragon contends that they did not agree to produce the documents, the documents have nonetheless been identified and must be produced. (Ibid.)

Item

49 requests all documents that refer to any employee of Green Dragon who was working at the time of the incident. (Mot., Exh. 2, ¶ 49.) Plaintiff argues that Green Dragon must produce these documents as the CEO of Green Dragon since he should ordinarily maintain them for payroll purposes. (Second SS, p. 20.)

In

opposition, Green Dragon argues that Verified Supplemental Responses were subsequently served on July 27, 2026, containing all information which could be obtained. (Opp., p. 2; Saboorian Decl., ¶ Exh. C.) The Court notes that proof of service attached to supplemental responses reflects service date of July 24, 2026. (Saboorian Decl., ¶ 4.)

In

reply, Plaintiff argues only that Green Dragon has not provided sufficient information to identify witnesses or employees working at the time of the incident. (Reply, p. 3.) Plaintiff reiterates that any objections were waived due to the late response to the RPDs. (Ibid.)

The Court finds

that Plaintiff does not demonstrate good cause for compelling further response to Items #9, 19-20, 28 and 43. Green Dragon has agreed to provide the documents sought in his supplemental responses to #9, 19-20, and 28, and to the extent the information was not in Green Dragon's possession, Green Dragon has provided contact information for parties which may have the documents. (Saboorian Decl., Exh. C, ¶¶ 9, 19-20, 28.) Further, Green Dragon cannot be compelled to produce hypothetical documents for prior incidents which they are not aware of. (Id. at ¶ 43.)

The Court finds Items

5, 13, and 44 to be overbroad and implicate the attorney-client privilege and work product doctrine. The requests are not sufficiently limited in scope to exclude those Items. (Fry Decl., Exh. 1, ¶¶ 5, 13, 44.) In requesting any and all communications of Green Dragon, all diagrams reproductions or models, all documents that refer to evidence, and all documents that refer to the incident, Plaintiff implicates protected communications and work product of the litigation.

Moreover, The

Court finds Items 5, 8, 12, 41, and 45 to be vague and overbroad and not sufficiently limiting in scope. (Fry Decl., Exh. 1, ¶¶ 8, 12, 41, 45.) Items 5, 8, 12, 41, and 45 request that Green Dragon provide any and all documents of any person referring to the incident, including any hypothetical documents that may refer to another party, other than Green Dragon, causing or contributing to the incident. These requests are extremely overbroad and not specific in their inquiry.

The

Court finds requests in Item 49 appropriately narrowed to the incident, and does not find the requests overbroad, vague, or ambiguous. The court acknowledges that Green Dragon purports not to be in possession of any documents that refer to or identify any employees working at the time of the incident. (Saboorian Decl., Exh. C, ¶¶ 49.) However, records of employees on site are not impossible to obtain and ordinarily maintained in the course of business. The Court finds that Green Dragon must provide further response.

Accordingly, the motion to compel further is

DENIED as to Items 5, 8-9, 12-13, 19-20, 28, 41, and 43-45. Motion to compel further response is GRANTED as to Item 49.

Sanctions

The Court shall

impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a

sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Plaintiff requests

imposition of sanctions in the amount of \$2,810 against Plaintiff. (Mot., p. 9.) Defendant's requests \$1,810 in attorney's fees reflecting 5 hours preparing the instant motion, at a rate of \$350 per hour, plus a \$60 filing fee and an additional \$1,000 pursuant to Code of Civil Procedure section 2023.050(a). (Fry Decl., ¶ 12.)

The Court acknowledges that Plaintiff has filed four related discovery motions to compel further responses from Defendants, and only three have been granted in part. Here, the Court will reduce the sanctions to \$235 per motion for a total of \$705 consisting of \$525 in attorney's fees (1.5 hours preparing the three granted motions at a rate of \$350 per hour) plus \$180 (\$60 x 3) in filing fees for the motions granted.

CONCLUSION

AND ORDER

Plaintiff Julio Bello's Motion to Compel

Further Response to RPDs is DENIED as to Items 5, 8-9, 12-13, 19-20, 28, 41, and 43-45.

Plaintiff's Motion to Compel Further

Response to RPDs is GRANTED as to Item 49.

Plaintiff's request for sanctions is

GRANTED in the amount of \$235 to be paid by Defendant Green Dragon within 15 days from this ruling.

MOVING PARTY shall provide notice and

provide a proposed order consistent with this ruling within 15 days from this date.

Motion to Compel Further

Responses to Form Interrogatories; Request for Sanctions

Hearing Date: 8/21/26

CASE NO.: 25NNCV07877

CASE NAME: Bello v.

Green Dragon Caregivers, Inc., et al.

Moving Party: Plaintiff Julio Bello

Responding Party: Defendants

Manuel Semerdjian and Green Dragon Caregivers, Inc.

Notice: Sufficient

Ruling: DENY.

BACKGROUND

This is a dog bite action. Plaintiff Julio Bello (Plaintiff) alleges that three dogs owned by defendant Manuel Semerdjian (Semerdjian) bit him without provocation while he was making a delivery to the business location of Green Dragon Caregivers, Inc. (Green Dragon). Plaintiff alleges that Semerdjian was employed by Green Dragon and allowed him to keep his dogs on the premises during the workday. On November 5, 2025, Plaintiff filed a Complaint against Semerdjian and Green Dragon (collectively, Defendants) alleging strict liability under the dog bite statute, negligence, and conscious disregard of the rights and safety of Plaintiff.

On April 6, 2026, Plaintiff filed the instant motion to compel further response to Form Interrogatories (Res ID: 4728) served on Green Dragon.

On the same day Plaintiff filed separate motions to compel further response to Requests for Production (RPDs) (Res ID: 5402) served on Green Dragon and RPDs (Res ID: 1264) and Form Interrogatories (Res ID: 7931) served on Defendant Semerdjian.

On July 24, 2026, Green Dragon served a supplemental response to the Form Interrogatories at issue. On July 27, 2026, both Defendants filed a consolidated opposition to all motions.

On July 31, 2026, Plaintiff filed Second Separate Statement in response to Green Dragon's supplemental response. On August 3, 2026, Plaintiff filed a consolidated reply.

This ruling addresses the Motion to Compel
Further Response to Form Interrogatories served on Green Dragon. (Res
ID: 4728)

LEGAL
STANDARD

“Unless notice of this motion is
given within 45 days of the service of the verified response, or any
supplemental verified response, or on or before any specific later date to
which the propounding party and the responding party have agreed in writing,” the
trial court lacks jurisdiction to order further responses to interrogatories
and/or requests for production of documents. (Code Civ. Proc.,
§§ 2030.300 (c), 2031.310 (c); see Vidal Sassoon v.
Superior Court (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file
motion to compel further is mandatory and jurisdictional).)

Compel Further
Responses to Interrogatories

“On receipt of a response to
interrogatories, the propounding party may move for an order compelling a
further response if the propounding party deems that... (1) [a]n answer to a particular
interrogatory is evasive or incomplete; (2) [a]n exercise of the option to produce documents under Section 2030.230 is
unwarranted or...(3) [a]n
objection to an interrogatory is without merit or too general. (Code
Civ. Proc., § 2030.300(a).)

“A motion under
subdivision (a) shall: (1) be accompanied by a meet and confer declaration” and (2) contain a separate statement or a
concise outline of
the discovery request and each response in dispute. (Code Civ. Proc., §
2030.300(b).)

If a party fails
to timely respond, objections are waived unless the court relieves
the waiver upon a showing of mistake, inadvertence, or excusable neglect
and a subsequently served compliant response. (Code Civ. Proc., §
2030.290.)

DISCUSSION

Timeliness

Here,

Plaintiff purports that verified responses to interrogatories were provided by Green Dragon on February 24, 2026. (Mot. to Compel Further Response (MTCF) to Form Interrogatories, p. 3.) Green Dragon's counsel confirms that verified responses were served on February 24, 2026. (Saboorian Decl., ¶ 3.) The instant motion was filed on April 6, 2026, 41 days from issuance of responses. Thus, the motion is timely and conforms with the 45-day statutory deadline.

Separate Statement

California Rules

of Court, rule 3.1345 requires a separate statement for motions to compel further responses. Plaintiff filed a separate statement in compliance with rule 3.1345(a) for the instant motion. Accordingly, this requirement is satisfied

Meet and Confer

A

motion to compel further responses must be accompanied by a meet and confer declaration "showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here,

Plaintiff's counsel declares that they have spoken with defense counsel and requested further responses, but defense counsel has not provided such responses even though they agreed to provide information. (Fry Decl., ¶ 4.) Notably, these efforts lack any attempts in person, by telephone, or by video conference to meet and confer. Therefore, the Court finds counsel's meet and confer efforts insufficient and noncompliant with Code of Civil Procedure section 2016.040.

However, the

Court will address the motions on its merits.

Compel Further Response to Interrogatories

Plaintiff moves

the Court to compel Green Dragon to produce further responses to Form Interrogatories Items #4.1, 4.2, 12.1, 14.1, 15.1, and 17.1. (Mot., p. 2.) The Court notes that because Green Dragon provided responses to the RPDs after the deadline, objections are waived absent relief by the Court. (Fry Decl., ¶¶ 2-3.) In their Second Separate statement, filed July 31, 2026, regarding Form Interrogatories served on Green Dragon, Plaintiff reduces further responses sought to Items #12.1, and 15.1.

Plaintiff argues that Items #12.1, and

15.1 request information on witnesses, contentions of whether a violation of statute caused the incident, and documents supporting affirmative defenses and denials. (Mot., pp. 4-6.) Regarding Item #12.1, Plaintiff argues that there was another employee who witnessed the event and it is unclear whether that employee is Semerdjian or another individual. (Ibid.) Regarding Item #15.1, Plaintiff argues that Green Dragon was asked to identify each denial of a material allegation and each special or affirmative defense but only addressed the affirmative defenses, making his response incomplete. (Mot., p. 6.)

In opposition, Green Dragon argues that the

only remaining interrogatories at issue are #2.2, 2.3, 2.5-2.8. (Opp., p. 3.) Green Dragon argues that this dispute concerns a dog bite and his general residential, educational, and personal background is not at issue. Green Dragon argues that his identity is known, and unrestricted disclosure of his personal information is unnecessarily intrusive and disproportionate to the needs of the action. (Opp., pp. 3-4.) Alternatively, Green Dragon argues that the information sought should be limited in scope and permit redaction of personal identifiers. (Opp., p. 4.)

In reply, Plaintiff argues that Defendants

have failed to adequately identify witnesses. (Opp., p. 3.)

The Court finds

that Plaintiff does not demonstrate good cause for compelling further response to Form Interrogatories #12.1 and 15.1. because Green Dragon has provided a supplemental response with substantive answers. (Saboorian Decl., Exh. A, ¶

12.1, 15.1.) While Plaintiff maintains that there was another employee who witnessed the attack, Plaintiff does not show where Defendants claimed there were three witnesses to the event. (Reply, p. 3.) In their second separate statement, Plaintiff makes similar unsupported argument. (Second SS, p. 3.)

Accordingly, the motion to compel further response to Form Interrogatories as to Items #12.1 and 15.1 is DENIED.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

"A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.)

Plaintiff request imposition of sanctions in the amount of \$1,110 against Plaintiff. (Mot., p. 9.) Defendant's requests \$1,110 in attorney's fees reflecting 3 hours preparing the instant motion, at a rate of \$350 per hour, plus a \$60 filing fee. (Fry Decl., ¶ 12.)

Here, sanctions will not be awarded because the motion to compel further response has been denied.

CONCLUSION
AND ORDER

Plaintiff Julio Bello's Motion

to Compel Further Response to Form Interrogatories is DENIED as to Items #12.1 and 15.1.

Plaintiff's request for sanctions is DENIED.

MOVING PARTY shall provide notice and provide a proposed order consistent with this ruling within 15 days from this date.